IN THE DISTRICT COURT OF APPEAL OF FLORIDA, THIRD DISTRICT

CASE NO. 3D2026-1265

L.T. CASE NO. 2024-019231-CA-01

SOMETHING GOOD SUPPER CLUB, LLC, a Delaware limited liability company; SOMETHING SHORT, LLC, a Delaware limited liability company; SANDO SUPPLIES, LLC, a New York limited liability company; ILAN KHUTORSKY, an individual; and RAPHAEL KHUTORSKY, an individual,

Appellants,

v.

MARTIN BORKAN, an individual, and MSB HOSPITALITY, LLC, a Florida limited liability company,

Appellees.

APPELLEES' MOTION TO DISMISS APPEAL AND FOR SANCTIONS

Appellees Martin Borkan and MSB Hospitality, LLC ("Appellees"), by and through undersigned counsel, move pursuant to Florida Rule of Appellate Procedure 9.300(a) for an order dismissing this appeal for failure to prosecute, and for a determination that the appeal is frivolous and was taken in bad faith, warranting sanctions under section 57.105, Florida Statutes.

As of the date of this motion, Appellants have not served an initial brief, sought an extension of time, or complied with this Court's Order to Serve Brief of September 24, 2026, although the initial brief came due on June 30, 2026, more than fifteen weeks ago.

STATEMENT OF THE CASE AND FACTS

1. This appeal arises from the denial of Appellants' collateral attack on a consent default judgment. On November 21, 2025, the circuit court entered an Ex Parte Default Final Judgment against Appellants. [R. 1583–

88]. The judgment flowed from the Agreed Order on Plaintiffs' Motion for Appropriate Relief, by which Appellants agreed that any failure to meet a deadline in that order would entitle Appellees to "an ex parte Default Final Judgment on the merits without further notice to DEFENDANTS or any hearing thereon, DEFENDANTS hereby having waived any and all argument or defenses (substantively, procedurally, or otherwise) thereto." [R. 2085–88].

2. Appellants moved to vacate the judgment on December 19, 2025. [R. 1591–99]. After an evidentiary hearing held on May 11, 2026, the circuit court denied the motion on May 13, 2026, "for the reasons stated on the record on May 11, 2026." [R. 4243–45].

3. On June 10, 2026, Appellants filed their Notice of Appeal. [R. 4236–40]. The notice designates the order rendered May 13, 2026, and describes that order on its face as "a final order" denying the Motion to Vacate Ex Parte Default Final Judgment and Stay.

4. On August 25, 2026, this Court issued its Corrected Acknowledgment Letter recording the case type as "NOA Non Final – Circuit Civil – Other." The order under review, an order entered on Appellants' authorized and timely motion for relief from judgment, is reviewable under Florida Rule of Appellate Procedure 9.130(a)(5), which provides: "Orders entered on an authorized and timely motion for relief from judgment are reviewable by the method prescribed by this rule."

5. Rule 9.130(e) fixes the briefing schedule: "The appellant's initial brief, accompanied by an appendix as prescribed by rule 9.220, must be

served within 20 days of filing the notice." Twenty days from the June 10, 2026 notice was June 30, 2026.

6. Appellants have served no initial brief, filed no appendix, and sought no extension of time. As of the date of this motion, one hundred six (106) days, more than fifteen weeks, have elapsed since the initial brief came due, and the docket reflects no filing by Appellants since the disposition of their motion for admission pro hac vice in early July 2026.

7. On September 24, 2026, this Court entered, of its own motion, an Order to Serve Brief: "Pursuant to the time schedule provided in the Florida Rules of Appellate Procedure, the time for filing the initial brief has expired. This cause will be subject to dismissal unless the document referred to is filed within ten (10) days from the date of this Order." The ten days ran from September 24, 2026; the tenth day fell on Sunday, October 4, 2026, and the window closed on the next business day, Monday, October 5, 2026. Appellants filed no initial brief within that window, sought no extension of time, and have filed nothing in the days since. No order of dismissal has entered, and the appeal remains open on this Court's docket, in default of the initial brief since June 30, 2026.

ARGUMENT

I. THE APPEAL SHOULD BE DISMISSED FOR FAILURE TO PROSECUTE.

Rule 9.300(a) provides that "an application for an order or other relief available under these rules shall be made by filing a motion therefor," stating the grounds, the relief sought, argument, and citations of authority.

Rule 9.410(a) empowers this Court, "[a]fter 10 days' notice," to impose sanctions for "any violation of these rules, or for the filing of any proceeding, motion, brief, or other document that is frivolous or in bad faith," and those sanctions expressly include "dismissal of proceedings."

This Court dismisses appeals for failure to file an initial brief on the appellee's motion. In *Old Cutler Glen Homeowners Ass'n, Inc. v. Michael Weiner, M.D., P.A. Profit Sharing Plan*, 245 So. 3d 728 (Fla. 3d DCA 2017), the Court granted the appellee's motion to dismiss the appeal "for failure to file an initial brief." *Harrow v. Harrow*, 255 So. 3d 846 (Fla. 3d DCA 2018), is to the same effect: the appeal was "dismissed for failure to file an initial brief."

This Court has cautioned that dismissal for a late brief ordinarily requires "fair warning, in advance, that this consequence may flow from a late filing." *United Auto. Ins. Co. v. Total Rehab & Med. Ctr.*, 870 So. 2d 866, 869 (Fla. 3d DCA 2004) (en banc); *see Windhaven Ins. Co. v. Biscayne Rehab Center, Inc.*, 243 So. 3d 1034, 1036 (Fla. 3d DCA 2018); *Miami-Dade Medical Centers, Inc. v. MGA Insurance Co.*, 908 So. 2d 1175 (Fla. 3d DCA 2005). That line of cases presupposes an appellant who is trying to prosecute the appeal and has missed a deadline: an appellant who filed a late brief, or who sought and received extensions. This is not that case. Here there is nothing: no brief, no appendix, no motion for extension of time, and no filing of any kind for more than fifteen weeks. And the fair warning that *United Auto* requires has been given, in this Court's own words, by its Order to Serve Brief of September 24, 2026, an order

Appellants ignored as completely as they ignored the briefing schedule. The appeal has simply been abandoned.

As this Court explained in *I Creatives, Inc. v. Premier Printing Solutions, Inc.*, 163 So. 3d 606, 607–08 (Fla. 3d DCA 2015), dismissal is warranted where the appellant's conduct reflects "some degree of disrespect for court processes bordering on, if not explicitly constituting, willful noncompliance." The total abandonment of an appeal for which no brief has ever been filed is precisely such noncompliance. *See Nocari Investment, LLC v. Wells Fargo Bank, N.A.*, 206 So. 3d 761, 762–63 (Fla. 3d DCA 2016) (counsel's explanation that his clients "decided to abandon the appeal" held inadequate).

Appellants' June 30, 2026 motion for admission pro hac vice did not toll the briefing schedule; motions relating to the admission of attorneys do not toll time. Fla. R. App. P. 9.300(d)(8). The twenty-day period therefore ran uninterrupted from the notice of appeal.

Appellees respectfully submit that dismissal is warranted.

II. THE APPEAL IS FRIVOLOUS AND WAS TAKEN IN BAD FAITH.

Section 57.105(1), Florida Statutes, directs that the court "shall award a reasonable attorney's fee … to be paid to the prevailing party in equal amounts by the losing party and the losing party's attorney" where "the losing party or the losing party's attorney knew or should have known that a claim or defense when initially presented to the court or at any time before trial … [w]as not supported by the material facts necessary to establish the

claim or defense; or [w]ould not be supported by the application of then-existing law to those material facts."

In *Visoly v. Security Pacific Credit Corp.*, 768 So. 2d 482, 490–91 (Fla. 3d DCA 2000), this Court defined a frivolous appeal as one that "presents no justiciable question and is so devoid of merit on the face of the record that there is little prospect it will ever succeed," and held that the power to sanction extends to the litigant, the attorney, or both, because "[t]he general policy behind awarding attorney's fees for bringing a frivolous action is to discourage baseless claims, stonewall defenses, and sham appeals by sanctioning those responsible for unnecessary litigation costs." *Id.* at 490–92.

That description fits this appeal exactly. The judgment Appellants seek to undo is a consent judgment, entered after Appellants expressly waived "any and all argument or defenses (substantively, procedurally, or otherwise)" [R. 2085–88]. Their motion to vacate was heard at a full evidentiary hearing and denied [R. 4243–45]. Rather than prosecute an appeal, Appellants took the appeal and then did nothing (no brief, no appendix, no extension) for more than fifteen weeks, and they ignored this Court's Order to Serve Brief of September 24, 2026. On this record, the appeal presents no justiciable question and was taken for no purpose other than to delay enforcement of a final judgment. It is the "sham appeal" that *Visoly*'s policy is designed to discourage.

III. THE COURT SHOULD IMPOSE SANCTIONS FOR THE FRIVOLOUS APPEAL ON ITS OWN MOTION.

Rule 9.410(a) permits this Court, "[a]fter 10 days' notice, on its own motion," to impose sanctions for "the filing of any proceeding … that is frivolous or in bad faith," and those sanctions may include "costs, attorneys' fees, or other sanctions." Fla. R. App. P. 9.410(a). The power is the Court's own; it requires no motion by a party, no safe-harbor service, and no service deadline (only the notice the rule itself prescribes) and a dismissal of the appeal does not take it away. This Court has granted a motion to dismiss and then, on its own motion, directed the party to show cause why it should not be responsible for appellate attorneys' fees under Rule 9.410. *Evans v. Advance Sounds & Performance, Inc.*, 245 So. 3d 719 (Fla. 3d DCA 2017); *see also Nocari*, 206 So. 3d at 762–63 (the Court's own show-cause order upon an appeal the appellant abandoned).

Appellees therefore invite the Court, should it find the record to warrant it, to determine that the appeal is frivolous and was taken in bad faith, and to impose appellate attorneys' fees as a sanction under section 57.105, Florida Statutes, on the Court's own motion under Rule 9.410(a), after the notice that rule requires, with the amount of any award assessed in or remanded to the lower tribunal.

Appellees further reserve the right to seek appellate attorneys' fees by separate motion, including within seven days after rendition of any order dismissing this appeal. Fla. R. App. P. 9.400(b)(4). Appellees do not, by this motion, seek an award directly against Appellants' counsel; counsel's

exposure under section 57.105(1), subject to the exception in section 57.105(3)(b), is left to the Court.

CONCLUSION

Appellees respectfully request that this Court:

1. Dismiss the appeal for failure to prosecute;
2. Determine that the appeal is frivolous and was taken in bad faith, warranting sanctions under section 57.105, Florida Statutes, and impose appellate attorneys' fees as a sanction on the Court's own motion under Rule 9.410(a), after the notice that rule requires; and
3. Grant such other and further relief as the Court deems just and proper.

Dated: October 14, 2026
Respectfully submitted,
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of October, 2026, a true and correct copy of the foregoing was electronically filed with the Clerk of

the Court using the Florida Courts E-Filing Portal, which will serve a copy via electronic mail upon all counsel of record registered on the Portal Service List.

/s/ Aaron R. Modiano
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